

**Court No. - 2**

**Case :-** WRIT - C No. - 63601 of 2010

**Petitioner :-** M/S Ratan Housing Development Ltd.

**Respondent :-** Kanpur Electricity Supply Company And Others

**Petitioner Counsel :-** N.P. Singh, Vikas Budhwar

**Respondent Counsel :-** Mridul Tripathi

**Hon'ble Vineet Saran, J.**

**Hon'ble Abhinava Upadhya, J.**

Heard learned counsel for the petitioner as well as Ms. Mridul Tripathi, learned counsel appearing for the respondents and also perused the record.

The case of the petitioner is that the petitioner Company had entered into an agreement with one Sri Kamal Raheja, who was owner of the land and as per agreement, the petitioner Company was to construct 31 flats, out of which 15 flats were to be given to Sri Raheja. The dispute in the present writ petition is with regard to the electricity connection in the flats given in the share of Sri Raheja. The petitioner contends that without grant of 'no objection certificate' by the petitioner, who was the developer of the plot, electricity connection cannot be granted.

Ms. Mridul Tripathi, learned counsel appearing for the respondents, on the other hand, states that the application for supply of electricity would be considered under Clause 4.4. of the U.P. Electricity Supply Code, 2005 and there is no such mandatory condition of grant of 'no objection certificate' by the developer prior to grant of electricity connection.

In such view of the matter, the prayer for mandamus made in the writ petition does not deserve to be granted. Even otherwise, the other prayer which is for quashing the order dated 14.10.2010, whereby the request of the petitioner has been rejected, also does not deserve to be granted.

The writ petition is accordingly dismissed.

**Order Date :-** 25.10.2010

SA

**Court No. - 37**

**Case :-** WRIT - C No. - 63601 of 2010

**Petitioner :-** M/S Ratan Housing Development Ltd.

**Respondent :-** Kanpur Electricity Supply Company And Others

**Petitioner Counsel :-** N.P. Singh, Vikas Budhwar

**Respondent Counsel :-** Mridul Tripathi, S.C.

**Hon'ble Vineet Saran, J.**

**Hon'ble Abhinava Upadhya, J.**

**Review Application No. 326712 of 2010**

Heard learned counsel for the applicant-petitioner as well as Sri Mridul Tripathi, learned counsel for the respondents and have perused the record.

This writ petition was dismissed by order dated 25.10.2010.

By means of this review petition the applicant-petitioner is seeking review of the said order. The applicant has not been able to make out any good ground for reviewing the order except for stating that the said order has wrongly been passed.

It is well settled legal proposition that the scope of review is very limited and an Order/Judgment can be reviewed only if it is established that it suffers from error apparent on the face of the record or for any other sufficient reason. It is not an appeal in disguise. By means of review application, a litigant cannot get another occasion to re-address the Court again on merit. In the absence of any good ground for review, we are not inclined to allow this application.

Even otherwise, this review application has been filed without disclosing any provision of law under which it is filed.

As such on merits as well as on technical ground this review application is dismissed. No order as to cost.

**Order Date :-** 2.12.2011

dps

(Abhinava Upadhya, J) (Vineet Saran, J)